REQUEST TO EXPUNGE AND/OR SEAL CRIMINAL RECORDS

IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: Cook
County Where You Are Filing the Case

REQUEST OF: Jordan Avery Reyes
Your First, Middle, and Last Name

None
Other Names Used In These Cases

06/14/1988	Hispanic	Nonbinary
Date of Birth	*Race*	*Gender*

Case Number
(if the Circuit Clerk assigns a new number)

When you have **finished** filling out this form, **fill out the *Case List for Request to Expunge and/or Seal Criminal Records* form** with all the arrest and case numbers you are asking to be expunged and/or sealed.

The *Case List* form **must be filed** at the same time you file this *Request* form.

REQUEST TO EXPUNGE CRIMINAL RECORDS

If you are only requesting to **seal** criminal records, **do not** fill out this section. **Skip** this section and go to **Request to Seal Criminal Records** starting in **page 4, Section 12**.

1. I am requesting to **expunge** records.

☑ Yes ☐ No *(If no, skip to Request to Seal Criminal Records starting in Section **12** on page **4**.)*

2. **I ask the Court to EXPUNGE the following arrests or charges from the records of the Arresting Agency, the Circuit Clerk, and the Illinois State Police. I was arrested, or charged without being arrested, and not convicted on the dates and for the offenses listed below on page 2**:

- *Use the instructions at ilcourts.info/how-to-expunge-adult to fill out the table on page **2** and to make sure all of your cases can be erased by expunging your record.*
- ***Do not list any convictions in this section.***
- *Enter all eligible arrests or charges on your record.*
- *Enter all charges for each case number.*
- *For **Outcome**, enter an outcome that reflects the outcome for each charge or case. Use the shortened version of the outcome from the Outcome Abbreviations for Expungement section on page **2**.*

	Arrest or Case Number	**Arresting Agency**	**Charge** *(list all charges for each case number)*	**Date of Arrest**	**Outcome** *(for example, RV, S or P)*
1	2021-CF-004217	Chicago Police Department	Driving without insurance	03/12/2021	S
2					
3					
4					
5					
6					
7					
8					
9					
10					

Outcome Abbreviations for Expungement

RV	Conviction Reversed or Vacated	**P**	Pardon from the Governor
CE	Certificate of Eligibility for Expungement from PRB	**FI**	Found Factually Innocent
RWC	Released Without Charge	**DA**	Dismissal or Acquittal
S	Supervision Successfully Completed	**QP**	Qualified Probation Successfully Completed

If you need more room, use the Additional Arrests or Cases for Expungement form and check the box.

☐ I have listed **additional arrests or cases** on the *Additional Arrests or Cases for Expungement* form.

*In Sections **3** - **11**, check any boxes that apply.*

3. I was not convicted of any offenses I want to expunge. Or I was convicted, but one of the checkboxes below applies *(check the box that applies)*:

*You cannot expunge a criminal conviction unless one of the special situations listed under checkboxes **a**, **b**, **c**, or **d** describes your case.*

a. ☐ I was convicted, but the conviction was reversed or vacated; OR

b. ☐ I received a pardon from the Governor of the State of Illinois allowing expungement. *(Attach a copy of the pardon.)*; OR

c. ☐ I received a Certificate of Eligibility for Expungement by the Prisoner Review Board. *(Attach a copy of the Certificate.)*; OR

d. ☐ I was found by a court that I am factually innocent in the case I am asking to expunge.

4. ☐ For at least one case, I was arrested and released, and no charges were filed against me.

*In **4**, check the box if you were arrested or brought into the police station, but you were released and no charges were ever filed against you.*

5. ☐ For at least one case, I was arrested for a minor traffic offense and released from custody without being charged.

6. ☐ For at least one case, I participated in a problem-solving court, pre-plea diversion, or post-plea diversion program; AND

a. ☐ I have successfully completed this program; OR

b. ☐ I am anticipating the successful completion of this program within 61 days of filing this request to expunge.

*In **6,** check the box if you have participated in a problem-solving court, pre-plea diversion, or post-plea diversion program. Once you have successfully completed the program and the criminal case has been dismissed, the court will review your request to expunge it.*

7. ☐ For at least one case, I was charged, but was later acquitted or the case was dismissed.

*In **7**, check the box if you were charged but: you were found not guilty; or the charges were dropped and you were not sentenced to supervision or probation (nolle prosequi, Stricken Off With Leave to Reinstate (SOL), non-suit, or dismissal); or the court issued a finding of no probable cause.*
***Note:** these terms are defined on page 19 of the instructions: ilcourts.info/how-to-expunge-adult*

8. ☐ For at least one case, I received a sentence of Qualified Probation and at least 5 years have passed since my Qualified Probation ended successfully.

This might also be called Second Chance, 410, 710, 1410, or TASC probation.

9. ☑ For at least one case, I received a sentence of supervision; AND

a. ☐ For certain offenses listed in the law, at least 5 years have passed since I completed my supervision successfully; OR

b. ☐ At least 2 years have passed since I completed my supervision successfully.

If you got supervision for any case, 5 years must have passed since the end of the sentence for:

- *Domestic Battery*
- *Criminal Sexual Abuse*
- *Driving without Insurance*
- *Driving with Registration Suspended for Non-Insurance*
- *Display of False Insurance Card*
- *Scrap Processors to Keep Records*

***OR** 2 years must pass since the end of the sentence for all other supervisions (except those listed in Section **10**, which can never be expunged).*

10. ☐ I am NOT seeking to expunge any arrests or charges that resulted in supervision for:

a. Driving Under the Influence; OR

b. Any sexual offense against a person under the age of 18; OR

c. Reckless Driving when I was 25 years of age or older.

11. ☐ For at least one case, I received a sentence of supervision for Reckless Driving; AND

a. I was under the age of 25 when the offense was committed; AND

b. I have no other convictions for DUI or Reckless Driving; AND

c. I have reached the age of 25.

REQUEST TO SEAL CRIMINAL RECORDS

*If you are only requesting to **expunge** cases, **check the "No" box** in Section 12, **skip to the bottom** of the form and sign it.*

12. I am requesting to **seal** records.

☐ Yes ☑ No *(If no, **skip** Sections 13 - 23.)*

13. I ask the Court to SEAL the following arrests, charges, or convictions from the records of the Arresting Agency, the Circuit Clerk, and the Illinois State Police:

- *Use the information on pages 16 - 18 of the instructions at ilcourts.info/how-to-expunge-adult to fill out this table and to make sure all of your cases can be hidden by sealing your record.*
- *Enter all eligible arrests, charges, and convictions you want sealed.*
- *Enter all charges for each case number.*
- *For **Outcome**, enter an outcome that reflects the outcome for each charge or case. Use the shortened version of the outcome from the Outcome Abbreviations for Sealing section below.*

	Arrest or Case Number	**Arresting Agency**	**Charge** *(list all charges for each case number)*	**Date of Arrest**	**Outcome** *(for example, MC, FC, CE)*
1					
2					
3					
4					
5					
6					
7					
8					
9					
10					

Outcome Abbreviations for Sealing

MC	Misdemeanor Conviction	**FC**	Felony Conviction
CE	Certificate of Eligibility for Sealing from PRB	**QP**	Qualified Probation Successfully Completed

*If you **need more room** to list additional eligible arrests or charges use the Additional Arrests or Cases for Sealing form and check the box.*

☐ I have listed **additional arrests or cases** on the attached *Additional Arrests or Cases for Sealing* form.

14. I am not asking to seal arrests or charges for minor traffic offenses, unless I was released without being charged.

*The statement in **14** must be true for you to use this form. Traffic offenses cannot be sealed unless they were an eligible Class A or B misdemeanor.*

*In Sections **15** - **24**, check all of the boxes that apply.*

15. ☐ I am asking to seal a successfully completed sentence of Second Chance Probation (under Section 5-6-3.4 of the Unified Code of Corrections) or First Time Weapon Offense Program (730 ILCS 5/5-6-3.6), for which there is no waiting period.

*In Sections **16 – 19:***

- *Some misdemeanor supervisions and convictions cannot be sealed, like DUI, some Reckless Driving Offenses, Domestic Battery, some Sexual Offenses, and Dog Fighting. For a list of crimes that can be sealed see page 8 of the instructions: ilcourts.info/how-to-expunge-adult*
- *"Last sentence" means the latest completion date of any sentence you received in Illinois or any other state.*

16. ☐ I successfully completed my supervision and **2 years** have passed since the end of my last sentence.

17. ☐ I received a **misdemeanor conviction** or ordinance violation for an offense subject to sealing and **2 years** have passed since the end of my last sentence.

18. ☐ I successfully completed a sentence under Section 10 of the Cannabis Control Act, Section 410 of the Illinois Controlled Substances Act, Section 70 of the Methamphetamine Control and Community Protection Act, or Offender Initiative Program (under Section 5-6-3.3 of the Unified Code of Corrections) and **2 years** have passed since the end of my last sentence.

19. I received a **felony conviction** for an offense subject to sealing AND at least one of these is true:

- **a.** ☐ I completed a sentence of conditional discharge or probation, the sentence was not revoked, AND **2 years** have passed since the end of my last sentence.
- **b.** ☐ My sentence of conditional discharge or probation was revoked AND **3 years** have passed since the end of my last sentence.
- **c.** ☐ I completed an Illinois prison or jail sentence AND **3 years** have passed since the end of my last sentence.

20. ☐ I am not asking to seal a felony conviction for which I currently have to register on a public registry, including the Arsonist Registration Act, the Sex Offender Registration Act, or the Murder and Violent Offender Against Youth Registration Act.

21. ☐ For at least one case, I received a Certificate of Eligibility for Sealing by the Prisoner Review Board. *(Attach a copy of the Certificate.)*

22. ☐ I have completed my last sentence and may now ask the court to seal eligible felony convictions because (*all the following are true*):

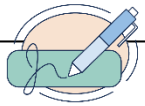
- **a.** I received a high school diploma, associate's degree, career certificate, vocational or technical certification, bachelor's degree, or passed the high school GED Test.
- **b.** I did so during the period of my last sentence, aftercare release, or mandatory supervised release.
- **c.** The felony conviction resulted in prison or jail, or conditional discharge or probation that was revoked.
- **d.** I did not complete the same educational goal before.
- **e.** I have attached proof of the program I completed to this *Request*.

23. ☐ I am eligible to seal all eligible cases upon completion of my LAST sentence because I am a trafficking victim as defined under Section 10-9 of the Criminal Code of 2012, and as such:

- **a.** I was a victim of human trafficking when my last offense was committed; AND
- **b.** My participation in the offense was a direct result of human trafficking under Section 10-9 of the Criminal Code of 2012 OR a severe form of trafficking under the federal Trafficking Victims Protection Act.

24. ☐ For at least one case, I received a conviction for Reckless Driving; AND

- **a.** I was under the age of 25 when the offense was committed; AND
- **b.** I have no other convictions for DUI or reckless driving; AND
- **c.** I have reached the age of 25.



SIGN

Under 735 ILCS 5/1-109, your signature means that:
1) everything in this document is true and correct, or I have been informed or I believe it to be true and correct, and
2) I understand that making a false statement on this form is perjury and has penalties provided by law.

If you are filling out this form online, sign your name by typing it. If you are filling out this form by hand, sign and print your name.

Signature /s/_____ Print Name Jordan Avery Reyes

☑ **I am completing this form for myself**

Phone Number 312-555-0142 Email (if you have one) jordan.reyes@example.org

Address 412 West Madison Street, Chicago, IL 60606

Street, Apt. # *City* *State* *Zip Code*

Be sure to **check your email every day** so you do not miss important information, court dates, or documents from other parties.

☐ **I am a lawyer completing this form on behalf of a client** (Client name): _____

Lawyer Name _____ Attorney Number _____

Lawyer Phone Number _____ Law Firm _____

Lawyer Email _____

Address _____

Street, Apt. # *City* *State* *Zip Code*



Do not fill in the information below. This section is for official use only.

State's Attorney/Prosecutor/ISP/Arresting Agency/Chief Local Legal Officer:

_____ Received on: _____

Signature *Date*

WHAT'S NEXT

When you have finished filling out this form, **fill out the *Case List for Request to Expunge and/or Seal Criminal Records* next**. The *Case List* form **must** be filed at the same time you file this *Request* form.

After you fill out all of your forms, file them with the Circuit Court Clerk's office.
Find your Circuit Clerk here: ilcourts.info/clerks.



Learn more about each step in the process in the instructions: ilcourts.info/how-to-expunge-adult

CASE LIST FOR REQUEST TO EXPUNGE AND/OR SEAL CRIMINAL RECORDS

IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: Cook
County Where You Are Filing the Case

REQUEST OF: Jordan Avery Reyes
Your First, Middle, and Last Name

None
Other Names Used In These Cases

06/14/1988 *Date Of Birth*

Hispanic *Race*

Nonbinary *Gender*

_____
Case Number
(if the Circuit Clerk assigns a new number)

This form **must be filed** with your *Request to Expunge and/or Seal Criminal Records* form.

Enter **all** eligible arrest or case numbers on your criminal record that you included in your *Request to Expunge and/or Seal Criminal Records* form and in any *Additional Arrests or Cases for Expungement* and/or *Additional Arrests or Cases for Sealing* forms you used.

If you have a case number, enter the case number. If you do not have a case number, then enter the arrest number.

Arrest or Case Numbers of all Eligible Criminal Offenses on your Record in this County:

2021-CF-004217				

☐ I have **more arrests or case numbers** included in my *Request to Expunge and/or Seal Criminal Records* and *Additional Arrests or Cases* forms and I have listed them on an additional *Case List* form.

ORDER TO EXPUNGE AND/OR SEAL CRIMINAL RECORDS

IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: Cook
County Where You Are Filing the Case

REQUEST OF: Jordan Avery Reyes
Your First, Middle, and Last Name

None
Other Names Used In These Cases

06/14/1988	Hispanic	Nonbinary
Date Of Birth	*Race*	*Gender*

Case Number
(If the Circuit Clerk assigns a new number)

1. Arrest or Case Numbers of all Eligible Criminal Offenses for EXPUNGEMENT in this County:

Enter the arrest or case number for all cases or charges listed under Section 2 of the Request form. If you run out of space in this section, fill out an additional Order and list those additional cases or charges.

2021-CF-004217			

☐ I have attached an additional *Order* form.

2. Arrest or Case Numbers of all Eligible Criminal Offenses for SEALING in this County:

Enter the arrest or case number for all cases or charges listed under Section 13 of the Request form. If you run out of space in this section, fill out an additional Order and list those additional cases or charges.

☐ I have attached an additional *Order* form.

3. Enter the name and contact information of the person who should receive the signed *Order*:

_____

Name *Address*

_____

Email *Telephone* *Attorney Number (if any)*



Do **not** check the boxes below. The judge will check the correct boxes. The judge will cross out the case numbers that are denied and include them on the *Order Denying Request to Expunge and/or Seal Criminal Records*.

IT IS ORDERED:

☐ Your *Request* for **EXPUNGEMENT** is **GRANTED** for the records on page 1 (section 1), and within 60 days of receiving days of receiving this *Order*:

- The Arresting Agencies and the Clerk of the Circuit Court must expunge these records as required by law.
- The Illinois State Police must expunge or impound these records as required by law.
- The Illinois State Police and the Arresting Agencies must request the return of all arrest or conviction records from any agencies that were previously notified of these records as required by law.
- The Illinois State Police must expunge any pardoned conviction and other arrests by sealing these records as required by law.

IT IS ORDERED:

☐ Your *Request* for **SEALING** is **GRANTED** for the records on page 1 (section 2), and within 60 days of receiving this *Order*:

- The Illinois State Police, the Arresting Agencies, and the Clerk of the Circuit Court must seal these records as required by law.
- The Illinois State Police and the Arresting Agencies must request the return of all arrest or conviction records from any agencies that were previously notified of these records as required by law.

ENTERED:

_____ _____

Judge *Date (Month, Day, Year)*

APPLICATION FOR WAIVER OF COURT FEES (CIVIL)

IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: Cook
County Where You Are Filing the Case

Enter the case information as it appears on your other court documents.

PLAINTIFF/PETITIONER OR IN RE: Jordan Avery Reyes
Who started the case. *First, Middle, and Last Name, or Business Name*

DEFENDANT/RESPONDENT: _____
Who the case was filed against. *First, Middle, and Last Name, or Business Name*

_____
Case Number
(Clerk fills in)

Use this form to ask the judge to **waive your court fees, costs, and charges in a civil court case**. If your case is a criminal case, use the *Application for Waiver of Criminal Court Assessments* form.

If you are completing this form on behalf of a minor or an incompetent adult, provide that person's information on this form instead of your own information.

1. BASIC INFORMATION

A. I am completing this form: *(check one)*

☐ For myself ☐ On behalf of a minor or incompetent adult.
(Use the minor or incompetent adult's information on this form)

B. Name: Jordan Avery Reyes
First *Middle* *Last Name*

C. I cannot afford to pay the court fees, costs, and charges in this case.

2. HOUSEHOLD INFORMATION

List the number of people who live with you who you support. Support means the people rely on you financially. If on behalf of a minor or an incompetent adult, use their information.

A. I support _____ adults (not counting myself) who live with me.
of Adults

B. I support _____ children under 18 who live with me.
of Children Under 18

3. PUBLIC BENEFITS

Check all the benefits that you currently receive. Be prepared to provide proof that you currently receive at least 1 of the checked benefits if asked.

I currently receive the following public benefits *(check all that apply)*:

☐ SSI (Supplemental Security Income, not Social Security)

☐ AABD (Aid to the Aged, Blind and Disabled)

☐ General Assistance Program (GA), Transitional Assistance, or State Children and Family Assistance

☐ SNAP (Supplemental Nutrition Assistance Program/Food Stamps)

☐ TANF (Temporary Assistance for Needy Families)

STOP: Read this note to see **what to complete next.**

☐ I checked one of the public benefit boxes in section 3.

▸ **Skip section 4 and section 5.** Go to section 6 on page 4. You qualify for a full fee waiver. (735 ILCS 5/5-105(a)(2)(i), (b)(1)).

- OR -

☐ I did **not** check any of the public benefit boxes in section 3.

▸ **Complete section 4 and section 5**, including both columns.

4. FINANCIAL INFORMATION

Do not fill out this section if you checked any boxes in section 3. Skip to section 6.

*If you did **not** check any boxes in section 3, fill out information below for **both** the past month and the past 12 months. Be prepared to provide proof of your income, the value of your belongings (including real estate), and your expenses if asked.*

A. I have a **pending** application for 1 or more of the benefits listed in section 3:

☐ Yes ☐ No

B. I received the following income (money) in the **past month**. List the gross (before taxes) amount *(check all that apply)*:

MONTHLY INCOME:

Type	**Total received in the past month**
☐ No income	
☐ My employment	$_____
☐ Social Security (not SSI)	$_____
☐ Child Support	$_____
☐ Unemployment	$_____
☐ Pension	$_____
☐ Money from other household members:	$_____
☐ Other income, including any money received from family and friends that is not listed above (list type and amount)	
_____	$_____
_____	$_____
_____	$_____
Total of all money received in the past month	**$_____**

C. I received the following income (money) in the **past 12 months**. List the gross (before taxes) amount (*check all that apply*):

YEARLY INCOME:

Type	**Total received in the past 12 months**
☐ No income	
☐ My employment	$_____
☐ Social Security (not SSI)	$_____
☐ Child Support	$_____
☐ Unemployment	$_____
☐ Pension	$_____
☐ Money from other household members:	$_____
☐ Other income, including any money received from family and friends that is not listed above (list type and amount)	
_____	$_____
_____	$_____
_____	$_____
Total of all money received in the past 12 months	**$_____**

D. I have the following **monthly expenses** *(check all that apply. If you share expenses with someone, list only the amount you pay)*:

MONTHLY EXPENSES:

Type of expense	**Amount per month**
☐ Rent	$_____
☐ Home mortgage	$_____
☐ Other mortgage	$_____
☐ Utilities	$_____
☐ Food	$_____
☐ Medical	$_____
☐ Vehicle, including any loans	$_____
☐ Childcare	$_____
☐ Child support	$_____
☐ Other monthly expenses not listed above *(list type and amount)*	
_____	$_____
_____	$_____
_____	$_____
Total of all expenses in the past month	**$_____**

☐ None of the above

E. I own the following **items and their value is** *(check all that apply)*:

ITEMS OF VALUE:

Item	**Total value**
☐ Bank accounts and cash	$_____
☐ Home	$_____
The total I owe on my home mortgage is $_____	
☐ Other real estate (not including the house I live in)	$_____
☐ 1st vehicle worth	$_____
Is the 1st vehicle paid off? ☐ Yes ☐ No	
☐ 2nd vehicle worth	$_____
Is the 2nd vehicle paid off? ☐ Yes ☐ No	
☐ Other *(list items and value)*	
_____	$_____
_____	$_____
_____	$_____

☐ None of the above

5. HARDSHIP INFORMATION (*Optional*)

If there is additional information you think the judge should know about why you cannot afford to pay the court fees, include that information here.

It would be a substantial hardship for me or my family if I have to pay the fees, costs, and charges because:

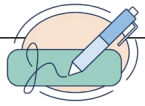
_____
_____
_____
_____
_____
_____
_____
_____

6. IF QUESTIONS ABOUT APPLICATION

If the judge has questions about my *Application* and I have to attend court, I want:

☐ A remote court date (video or telephone)

☐ An in-person court date



SIGN

Under 735 ILCS 5/1-109, my signature means that:

1) Everything in this document is true and correct, or I have been informed or I believe it to be true and correct, and

2) I understand that making a false statement on this form is perjury and has penalties provided by law.

If you are filling out this form online, sign your name by typing it. If you are filling out this form by hand, sign and print your name.

Signature /s/ _____ Print Name Jordan Avery Reyes _____

☑ **I am completing this form for myself**

Phone Number 312-555-0142 _____ Email (if you have one) jordan.reyes@example.org _____

Address 412 West Madison Street, Chicago, IL 60606 _____

Street, Apt. # *City* *State* *Zip Code.*

Be sure to **check your email every day** so you do not miss important information, court dates, or documents from other parties.

☐ **I am a lawyer completing this form on behalf of a client** (Client name): _____

Lawyer Name _____ Attorney Number _____

Lawyer Phone Number _____ Law Firm _____

Lawyer Email _____

Address _____

Street, Apt. # *City* *State* *Zip Code*



WHAT'S NEXT

NEXT STEP FOR PERSON FILLING OUT THIS FORM:

File this form at the Circuit Court Clerk's office. You can file this form at any point during your case. More information on how to do that can be found here: ilcourts.info/forms.

THEN:

You should only have to go to court for a hearing on your *Application* if the judge needs more information from you (735 ILCS 5/5-105 and 5/5-105.5; Illinois Supreme Court Rule 298). The judge will notify you if you need to go to court or give more information. This may include documents showing your income, value of belongings (including real estate) and expenses.



Learn more about each step in the process by reading through our Instructions document: ilcourts.info/how-to-fee-waiver.